

23SMCV02462 23SMCV02462

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-23

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Case Number: 23SMCV02462 Hearing Date: July 23, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

June

18, 2026 -- continued to July 23, 2026

CASE NUMBER

23SMCV02462

MOTION

Motion

to be Relieved as Counsel

MOVING PARTY

Mansfield

Collins of Law Offices of Mansfield Collins

OPPOSING PARTY

Plaintiff

Gina Salemi

MOTION

Mansfield Collins of Law Offices of

Mansfield Collins, counsel for Defendant Joseph Miguel

Pipkin ("Counsel") moves to be relieved as counsel, citing a discharge by the client. Plaintiff opposes the motion.

LEGAL

STANDARD

Code of Civil Procedure section 284 provides "[t]he attorney in an action or special proceeding may be changed at any time before or after judgment or final determination as follows: 1. Upon the consent of both client and attorney, filed with the clerk, or entered in the minutes; 2. Upon the order of the court, upon the application of either client or attorney, after notice from one to the other."

Procedural Requirements

California Rules of Court, rule 3.1362, requires:

(1) the motion must be made on form MC-051; (subd. (a));

(2) it must be accompanied by a declaration on form MC-052 stating why the motion is brought under Code of Civil Procedure section 284(2) instead of a consent brought under section 284(1); (subd. (c));

(3) a proposed order on form MC-053 must be lodged with the court, specifying all hearing dates scheduled in the action or proceeding, including the date of trial, if known; (subd. (e)); and

(4) The documents must be served on the client and on all parties that have appeared in the case. (subd.

(d.)

If

the notice is served by mail or electronic service, it must be accompanied by a declaration indicating that the address served is the current address, or in the case of service by mail, that it was served on the last known address and a more current address could not be located after reasonable efforts within 30 days before filing the motion. (Ibid.) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.”

(Ibid.)

Substantive Requirements

Rules of Professional Conduct, rule 1.16(a) outlines the reasons a lawyer must withdraw from representation of a client:

(1) the

client is bringing an action, conducting a defense, asserting a position in litigation, or taking an appeal, without probable cause and for the purpose of harassing or maliciously injuring any person;

(2) the

representation will result in violation of the Rules of Professional Conduct or the State Bar Act;

(3) the

lawyer's mental or physical condition renders it unreasonably difficult to carry out the representation effectively; or

(4) the

client discharges the lawyer.

Rules of Professional Conduct, rule 1.16(b) outlines the reasons a lawyer may withdraw from representation of a client:

(1) the

client insists upon presenting a claim or defense in litigation, or asserting a position or making a demand in a non-litigation matter, that is not warranted under existing law and cannot be supported by good faith argument for an

extension, modification, or reversal of existing law;

(2) the

client either seeks to pursue a criminal or fraudulent course of conduct or has used the lawyer's services to advance a course of conduct that the lawyer reasonably believes was a crime or fraud;

(3) the

client insists that the lawyer pursue a course of conduct that is criminal or fraudulent;

(4) the

client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively;

(5) the

client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation;

(6) the

client knowingly and freely assents to termination of the representation;

(7) the

inability to work with co-counsel indicates that the best interests of the client likely will be served by withdrawal;

(8) the

lawyer's mental or physical condition renders it difficult for the lawyer to carry out the representation effectively;

(9) a

continuation of the representation is likely to result in a violation of these rules or the State Bar Act; or

(10)

the lawyer believes in good faith in a proceeding pending before a tribunal that the tribunal will find the existence of other good cause for withdrawal.

DISCUSSION

Counsel has filed forms MC-051, MC-052, and MC-053. The attorney declaration (MC-052) indicates that the motion was filed instead of filing a consent because the client has discharged Counsel as of May 2, 2026. (MC-052 at ¶ 2.) As such, the Court finds that the motion complies with the Rules of Professional Conduct, rule 1.16(a)(4).)

However, Counsel has not provided any proofs of service, without which, Counsel cannot demonstrate service on the client and on all other parties who have appeared in the action, as required by California Rules of Court, rule 3.1362.

Therefore, the Court finds that the motion is procedurally defective.

In lieu of denying the motion, the Court continued the hearing on the motion to afford Counsel an opportunity to serve the moving papers, as necessary, and to file the requisite proof(s) of service. The Court finds that no proof of service was filed.

CONCLUSION

AND ORDER

Because Counsel has not filed any proof of service demonstrating proper service of the motion, the Court denies Counsel's motion to be relieved without prejudice.

Counsel shall also provide notice of the Court's rulings and file the notice with a proof of service forthwith.

DATED: July 23, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court